

2:00 PM

LINE 5

22-CIV-03053 ELIZABETH CHUNG, ET AL. VS. DALE WADE, ET AL.

ELIZABETH CHUNG
DALE WADE

MICHELLE AKERMAN
DAVID A. HARRIS

MAIDEN STONE INC.'S MOTION FOR DETERMINATION OF GOOD FAITH SETTLEMENT

TENTATIVE RULING:

See the tentative ruling for Wade's motion for good faith settlement, which tentative ruling is incorporated by reference as if set forth fully herein.

2:00 PM

LINE 6

24-CIV-01136

JUSTIN GELLER VS. FORD MOTOR COMPANY, ET AL.

JUSTIN GELLER
FORD MOTOR COMPANYROGER KIRNOS
RICHARD DALLIN SOPP

PLAINTIFF'S MOTION FOR ATTORNEYS' FEES, COSTS AND EXPENSES

TENTATIVE RULING:

Plaintiff Justin Geller's unopposed Motion for Attorneys' Fees, Costs and Expenses is GRANTED-IN-PART pursuant to Civil Code section 1794 and the terms of the parties' settlement agreement, as follows:

Plaintiff filed this Song-Beverly Warrant Act (Song-Beverly) action on February 27, 2024, and filed a notice of conditional settlement on June 3, 2025. Plaintiff requests a total award of \$28,059.05, consisting of \$19,858.50 in lodestar fees, a lodestar enhancement of \$5,957.55, and costs and expenses in the amount of \$2,243.00.

Reasonableness of Fees

A buyer who prevails in an action under the Song-Beverly action is entitled to recover costs and expenses, including attorney's fees, reasonably incurred in connection with the commencement and prosecution of the action. (Civ. Code, § 1794; *Reynolds v. Ford Motor Co.* (2020) 47 Cal.App.5th 1105.) Attorneys' fees in a Song-Beverly case are based upon the lodestar method. (*Reynolds, supra*, 47 Cal.App.5th at p. 1112.) California courts have consistently held that a computation of time spent on a case and the reasonable value of that time is fundamental to a determination of an appropriate attorneys' fee award." (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095 [internal quotations and citation omitted].) "The major factors the trial court must consider in determining an attorneys' fee award include: the nature of the litigation and its difficulty; the amount of money involved in the litigation; the skill required and employed in handling the litigation; the attention given to the case; the attorney's success, learning, age and experience in the particular type of work demanded; the intricacy and importance of the litigation; the labor and necessity for skilled legal training and ability in trying the case; and the amount of time spent on the case." (*Id.* at p. 1508 [citing *In re Marriage of Cueva* (1978) 86 Cal.App.3d 290, 296 and *Nevin v. Salk* (1975) 45 Cal.App.3d 331, 343].) "[T]he fee setting inquiry in California ordinarily begins with the 'lodestar,' i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate.

Here, Plaintiff purchased a new 2019 Ford F-150 for a total sales price of \$57,302.23 (the "Subject Vehicle"), which was manufactured and/or distributed by Defendant Ford Motor Company. (Kirnos Decl., ¶4.) Plaintiff presented the Subject Vehicle for repair repeatedly during the warranty period and thereafter contacted Knight Law firm who accepted the case on a
